

		The Court finds Hutchens' failure to timely comply was not willful but instead due to Defense counsel's medical issues and miscommunications in Defense counsel's office. (Safarian Decl., ¶¶ 3-6, Ex. A.) Plaintiff has not produced evidence refuting Defendant's reasons. Issue sanctions therefore are not warranted. Nevertheless, Plaintiff is entitled to recover the cost of preparing the instant motion in the amount of \$1,358 (2.3 hours researching and drafting the motion and another hour anticipated for reply and hearing at a rate of \$485/hour). The Court finds the hours expended and the hourly rate to be reasonable. Based on the foregoing, the motion is DENIED, in part, as to issue sanctions and GRANTED, in part, as to monetary sanctions. Defendant and her attorney Harry A. Safarian are ORDERED to pay Plaintiff monetary sanctions in the amount of \$1,358 within ten days.
3	22-01263671 Chavez vs. Prime Construction Group Inc.	Motion to Enforce Settlement Plaintiff Cesar Chavez's Motion to Enforce Settlement Agreement is DENIED. Plaintiff moves pursuant to Code of Civil Procedure section 664.6 to enforce the parties' Settlement Agreement and enter judgment against defendants Prime Construction Group, Inc., Joe Manoukian, Joe Manoukian dba JM Floors Décor, and JM Flooring Concepts (collectively, Defendants) in the amount of \$17,000 plus 10% interest from the date of breach. On 3/19/26, the Court continued the hearing on this motion to allow Plaintiff more time to file a Supplemental Brief by April 9, 2026 close of business. (ROA 153.) Defendants were allowed to file an opposition by April 23, 2026 close of business. (ROA 153.) The parties timely did so. Code of Civil Procedure section 664.6, subdivision (a), provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." In ruling on a motion to enforce settlement, "the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone. When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory." (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1360 [cleaned up].) However, "nothing in

section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon. (*Ibid.* [emphasis in original].)

Existence of Agreement

On 4/22/25, the parties reached a settlement agreement wherein Defendants agreed to pay Plaintiff \$17,000.00 within 45 days of that agreement with the Court to retain jurisdiction to enforce the agreement pursuant to Civil Code Section 664.6. (See Shabini Decl., ¶ 3, Ex. 1.) The agreement is signed by all parties and their counsel. (*Ibid.*) Plaintiff's counsel attests that the attached agreement "is a true and correct copy of the settlement agreement reached in this matter." (*Ibid.*)

The Court finds Plaintiff and Defendants entered into a valid and binding settlement agreement during the pendency of this litigation. (See Shabini Decl., ¶ 3, Ex. 1.)

Defendants dispute the existence of a settlement agreement on two grounds. First, Defendants argue an attorney's signature on the agreement alone is insufficient and Plaintiff failed to demonstrate that all parties personally signed the agreement. Defendants' argument lacks merit. Effective 1/1/25, a writing is signed by a party if it is signed by the party or the party's attorney. (Code Civ. Proc., § 664.6 subd. (b)(1), (2); see also Civ. Code, § 1633.7, subd. (a) ["A ... signature may not be denied legal effect or enforceability solely because it is in electronic form."].) Here, the settlement agreement is electronically signed by defendant Joe Manoukian on behalf of each defendant on 4/9/25 and defense counsel on 4/8/25. (See Shabini Decl., ¶ 3, Ex. 1.) This is sufficient. Notably, neither Joe Manourkian nor Defense counsel dispute signing the agreement.

Second, Defendants argue Plaintiff failed to establish a "meeting of the minds" as to material terms because disputes remain as to timing, performance conditions, and other essential terms. However, Defendants fail to state specifically how the terms of the attached agreement are incomplete or insufficiently definite.

Breach of Settlement Agreement

Defendants argue Plaintiff fails to establish that "payment was due and owing under enforceable conditions" and that "any alleged delay or nonpayment may be excused or subject to conditions precedent." Defendants' conclusory contentions lack analysis and citation to supporting evidence.

Nevertheless, the Court agrees. While Plaintiff has established Defendants did not pay the settlement amount within 45 days of the agreement (see Shabini Decl. [Supplemental], ¶ 4), the agreement contains the following condition precedent:

		“20. <u>Condition Precedent – Dismissal</u>. Plaintiff acknowledges and agrees that a condition precedent to the receipt of the Settlement Amount is the full execution of this Agreement and the filing of a Request for Dismissal with prejudice of the entire action identified as Case No. 30 2022-01263671-CU-PO-CJC. <i>Defendants shall have no obligation to make any payment under this Agreement until such dismissal has been filed and confirmed.</i>” (See Shabini Decl., ¶ 3, Ex. 1, ¶ 20 [emphasis added].) To date, Plaintiff has not filed a Request for Dismissal as agreed. Therefore, Plaintiff has failed to satisfy a condition precedent. <u>Interest</u> Lastly, Defendants argue Plaintiff seeks interest and expanded relief not clearly set forth in the agreement. This argument is well taken. Plaintiff seeks interest of 10% per annum from the date of the breach, which is a request for prejudgment interest. However, the settlement agreement does not contain a provision for prejudgment interest. Therefore, there is no basis for awarding prejudgment interest. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in § 664.6 agreement: “The \$20,000 settlement sum in the stipulation (of entry of judgment) is unallocated, and may or may not have included . . . prejudgment interest. We find no basis for awarding . . . prejudgment interest in addition to the stipulated settlement sum.”].) The motion is DENIED.
4	25-01506671 <i>Dr. Erasto Gutierrez, MD, Inc. vs. Jolish RSM, LLC</i>	Demurrer to Complaint The general demurrer of defendants CWRP Mission RSM, LLC, Jolish RSM, LLC, and RSM ZG, LLC, demur to all three causes of action in the complaint of plaintiff Dr. Erasto Gutierrez, M.D., Inc., is SUSTAINED with 30 days’ leave to amend. <u>Discussion</u>. Defendants CWRP Mission RSM, LLC, Jolish RSM, LLC, and RSM ZG, LLC, demur generally to all three causes of action in the complaint of plaintiff Dr. Erasto Gutierrez, M.D., Inc. <u>First cause of action for breach of contract</u>. The first cause of action is for breach of contract and is asserted against the moving defendants as well as co-defendant Urgentmed Management, LLC. Plaintiff alleges that, on or about November 6, 2023, he entered into a written agreement with all defendants and that he is attaching copy of this agreement to the complaint as Exhibit A. (Complaint, ¶ BC-1.) Plaintiff alleges that, before entering into the agreement, which is a lease, the defendants had actual and constructive knowledge of persistent foul sewer odors permeating the premises, other units, and adjacent common areas and that defendants failed to disclose this material defect to plaintiff before it entered into the agreement.